IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD

TreeFrog Development, Inc.,	)	
	)	
Opposer,	)	Opposition No. 91232860
	)	App. No. 86905410
v.	)	
	)	
Sakar International, Inc.	)	
	)	Mark: LIFEJACKET
Applicant.	)	
	)	

APPLICANT'S SUPPLEMENTAL BRIEF

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I. ACR SUBMISSION

The present Supplemental Brief is being submitted pursuant to the parties' Accelerated Case Resolution Stipulate filed August 24, 2018 (28 TTABVUE) and the Board Order entered on October 27, 2018 (35 TTABVUE). Applicant Sakar International, Inc. ("Sakar") expressly relies upon, and incorporates herein, all arguments and evidence submitted in its March 2, 2018 Opposition to Opposer's Motion for Summary Judgment and Declaration of Theodore R. Remaklus in support thereof (22 and 23 TTABVUE).

II. INTRODUCTION

Opposer TreeFrog Development, Inc. ("TreeFrog") tells quite a fanciful tale of a consumer that seeks to purchase a case to protect his or her mobile phone for an upcoming camping trip and selects a TreeFrog LIFEJACKET branded product. He or she then decides that having music at the campsite during the trip would be fun and so decides to purchase a Bluetooth speaker and purchases Sakar's product with a waterproof case sold under the LIFEJACKET mark mistakenly thinking it is from the same source. However, TreeFrog's tale is just that, fanciful. Despite the fact that Sakar has sold over [redacted] worth of its products for more than 4 ½ years, there is no evidence that any consumer has ever been confused. To avoid the clear conclusion that there is no confusion or likelihood of confusion, TreeFrog resorts to conflating its LIFEJACKET and LIFEPROOF marks, and relying on vague and misleading statements. When all relevant facts are considered, it is clear that there is no likelihood of confusion and the opposition by TreeFrog must be dismissed.

III. EVIDENTIARY ISSUES

Sakar objects to the following exhibits submitted by TreeFrog:

A. Exhibits 9-14 to the October 15, 2018 Declaration of Eric R. Chad ("Chad Decl.") (29 and 32 TTABVUE) under Fed. R. Evid. 801 and 802 as being hearsay. The documents are those of a third-party for which TreeFrog has not properly authenticated by someone with knowledge of the documents, which is required for admission under Fed. R. Evid. 803(6); *see SEC v. Jasper*, 678 F.3d 1116, 1122 (9th Cir. 2012) (noting that a 10-K document is admissible where it is properly authenticated).

B. Exhibit 16 to Chad Decl., which was Exhibit 28 to TreeFrog's summary judgment motion, under Fed. R. Evid. 801 and 802 as being hearsay. The content of the document was obtained through an online survey platform and not prepared by TreeFrog (see Exhibit 11 to the November 14, 2018 Declaration of Theodore R. Remaklus ("Remaklus Decl.") at 75:5-22). The document is, therefore, an unauthenticated document with statements of third parties and hearsay.

IV. FACTUAL BACKGROUND

A. Sakar's LIFEJACKET Mark

As previously set out in detail in Sakar's Opposition to Opposer's Motion for Summary Judgment (22 and 23 TTABVUE), Sakar is a well-known manufacturer of speakers, headphones, cameras and health and wellness products, such as fitness bands. Included among its products are cases for speakers that are sold with the speakers. (Exhibit 1 to the Remaklus Decl. at 6:19-7:16.) When Sakar developed a new speaker in 2013 that would be both shockproof (as was an existing product called JACKET) and also waterproof, Sakar selected LIFEJACKET as the name

of the new product. The name was chosen as a play on the name of the existing product and, to reflect it being waterproof; LIFEJACKET was thought to be a great name that had an attractive sound. (Exhibit 1 to Remaklus Decl. at 17:16-18:9; 23:5-20; 35:5-20; Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 1; Exhibit 3 to Remaklus Decl. at response to Interrogatory No. 14.)

Sakar began sales of the LIFEJACKET products in April of 2014. (Exhibit 1 to Remaklus Decl. at 105:22-108:7; Exhibit 4 to Remaklus Decl.) The product was an immediate success, with the following sales:

[redacted]

(Exhibit 1 to Remaklus Decl. at 63:24-64:15; Exhibits 4 and 5 to Remaklus Decl.) [redacted]

The LIFEJACKET product is a removable case that goes around the speaker. The LIFEJACKET product, however, is only sold with the speaker and is not sold separately, though replacement cases can be provided to consumers. (Exhibit 1 to Remaklus Decl. at 23:21-24:25.) As shown by photos below of the front and rear of an exemplary packaged product, the LIFEJACKET branded product is sold under the ALTEC LANSING name, and the speaker portion prominently displays that name.



This is similar to the packaging for all of the products. (Exhibit 1 to Remaklus Decl. at 144:8-145:6; Exhibit 6 to Remaklus Decl.) The LIFEJACKET branded products are a part of the line of products sold under the ALTEC LANSING brand and are targeted to audiophiles knowledgeable of the ALTEC LANSING brand. (Exhibit 1 to Remaklus Decl. at 37:11-38:17; Exhibit 7 to Remaklus Decl.; Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 5.)

The LIFEJACKET branded products compete against higher-end audio brands such as Bose, JBL and Sony. (Exhibit 1 to Remaklus Decl. at 91:9-92:8.) While the products are primarily for people with a regular lifestyle, the marketing materials used in promoting the

products show a rugged lifestyle as part of the brand story, which is reflected in retail displays that are used, one of which is reproduced below, and all of which include photos showing use in



water and active lifestyles and prominently feature the ALTEC LANSING mark. The marketing and packaging show outdoor use as a way to distinguish the products over those of Bose and JBL. (Exhibit 1 to Remaklus Decl. at 102:7-105:2; 145:15-19; Exhibit 6 to Remaklus Decl.; Exhibit 8 to Remaklus Decl.) Because the products are waterproof, sand proof, snow proof and shock proof – which equals everything proof – those features are a part of the marketing as well. (Exhibit 1 to the Remaklus Decl. at 53: 8-22.)

Sakar sells the LIFEJACKET branded products primarily to retailers, [redacted] [redacted] (Exhibit 1 to Remaklus Decl. at 57:17-61:22; Exhibit 2 to

Remaklus Decl. at response to Interrogatory Nos. 5 and 6.) LIFEJACKET branded products are sold in the electronics section of retailers where audio speakers are sold. (Exhibit 1 to Remaklus Decl. at 68:12-71:14.) The LIFEJACKET branded products have a retail price, depending on the model, from between $69 and $299. (Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 4.)

On February 11, 2016, Sakar filed US Application No. 86905410 with the US Patent and Trademark Office for the LIFEJACKET mark for use in connection with "Impact-resistant and moisture-resistant plastic cases for insulating audio speakers and headphones." That application was passed, without objection by the Trademark Office, to publication on February 14, 2017.[1]

B. TreeFrog's LIFEJACKET and LIFEPROOF Marks

TreeFrog is the owner of Registration No. 4354783 for the mark LIFEJACKET. That registration is limited to use with "Waterproof protective case for tablet computers". (Exhibit 1 to the October 15, 2018 Declaration of Jordan Vater, "Vater Decl.") TreeFrog also owns a number of registrations for the mark LIFEPROOF. As with the LIFEJACKET mark, those registrations are primarily for use in connection with protective housings, cases and covers for cell phones, lap tops and tablet computers, and the sale of such products. (Exhibits 3-6 to the October 15, 2018 Declaration of Jordan Vater, "Vater Decl.")

TreeFrog's LIFEJACKET branded product is, or more accurately was, a niche product that is a case for a case for use with cell phones and tablet computers. It is "used in addition to the LifeProof case. So, you would put it over the top of a LifeProof case on a phone or tablet" and that helps the device to float. (Exhibit 9 to Remaklus Decl. at 13:18-14:20.) This is clear

[1] The parties stipulated that the application was to be amended to delete "and headphones" from the application. See 20 TTABVUE.

from the marketing material that TreeFrog used, such as the sell sheet TreeFrog included at page 3 of its Supplemental Brief (20 and 32 TTABVUE), which is reproduced below, and in which the text that states how the device works in combination with another TreeFrog case is underscored. [redacted]

PRODUCT DESCRIPTION

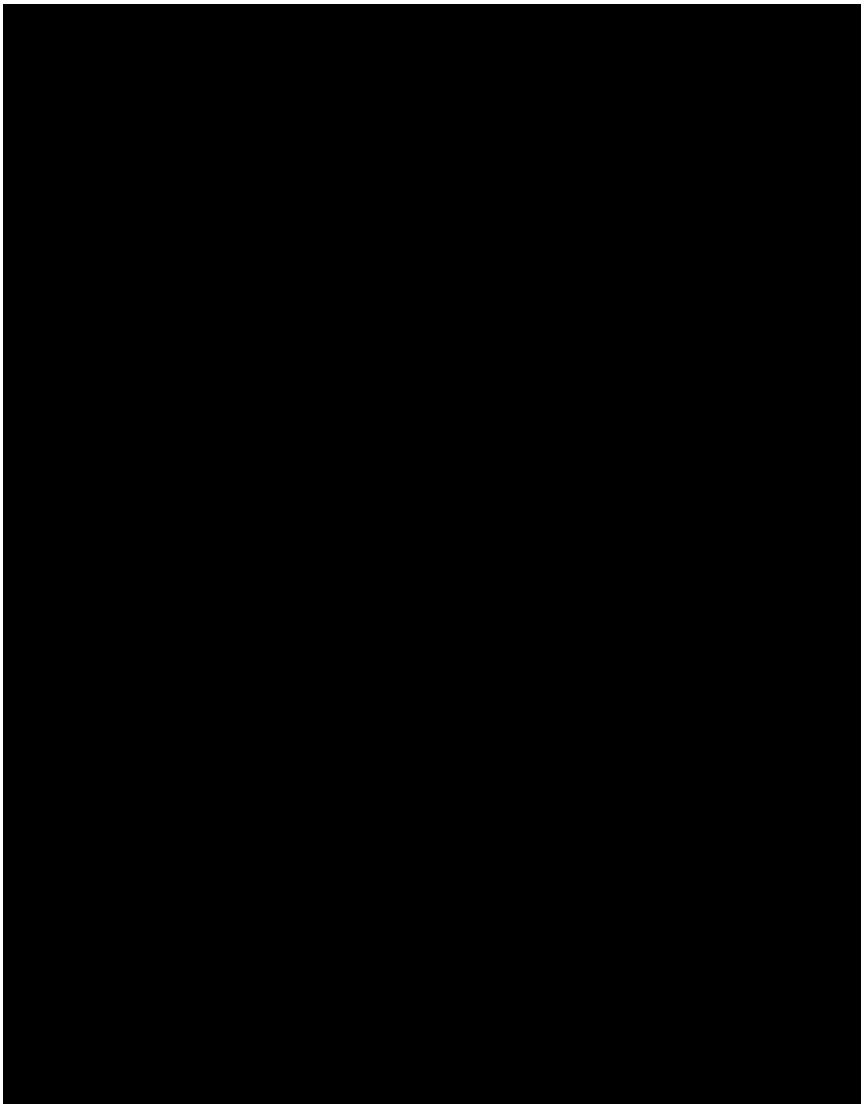
Whether you're making a splash poolside, taking the plunge seaside or wetting hooks dockside, the LifeActiv LifeJacket keeps your iPhone 6 buoyant and afloat. Slipping right around your FRĒ or NŪŪD iPhone 6 case, the LifeJacket delivers maximum buoyancy and an extra level of extreme drop protection. And the tear-resistant foam is brightly colored so you never lose sight of your device.

FEATURES

- Works with both FRĒ and NŪŪD cases for iPhone 6
- Keeps your iPhone 6 buoyant and afloat
- Delivers ultimate drop and scratch protection
- Speaker and microphone remain fully functional
- High-visibility coloration
- Enhanced grip for all conditions
- Includes wrist and neck lanyards
- LifeProof case easily slips in and out of LifeJacket



[redacted]. (See Exhibit 1 to the Chad Decl.). [redacted] (Exhibit 1 to Chad Decl.). Similarly, the fact that TreeFrog has essentially abandoned the LIFEJACKET branded product is clear from the fact that the product did not even appear in the printout of the "Lifeproof.com" website that TreeFrog produced in this case (dated November 13, 2017), and searches on the "Lifeproof.com" website on February 19, 2018 and November 12, 2018 for "lifejacket" products returned no results. (Exhibits 10 and 11 to Remaklus Decl.). Moreover,



TreeFrog has produced no documents showing any retail display that ever included the LIFEJACKET branded product.[2] And, while TreeFrog claims the LIFEJACKET branded

[2] TreeFrog claims at page 4 of its Supplemental Brief that the LIFEJACKET product has been reviewed and recognized by hundreds of media outlets. Not so. The only evidence it provides are two articles from 2012 and 2014 that briefly mention a LIFEJACKET branded product and a February 14, 2014 CNET article that merely states that three cases were being given away, one of which is a LIFEJACKET branded case (the article states "Best Headphones of 2017" at the top because it was printed in 2017). (See Exhibits 2, 7 and 8 to Chad Decl.). Sakar is not aware that TreeFrog produced any reviews or recognition of the LIFEJACKET branded products dated more recent than 2014.

products sells at retail for roughly $40, the document TreeFrog cites was created years ago as it refers to use with cases for the iPhone 6. The specimen that TreeFrog submitted in June of 2018 when it filed a Section 8/15 declaration for Registration No. 4354783 shows the retail price was $7.99, and so a very inexpensive product. (Exhibit 15 to the Remaklus Decl.)[3] Moreover, the only documents produced showing packaging for the LIFEJACKET branded products are limited to products for use with the iPhone 6 (drawings dated May of 2015), the iPad mini and dated 2013, and the original specimens submitted for Registration No. 4354783 filed on January 10, 2013. (Exhibit 16 to the Remaklus Decl.)

TreeFrog also claims without evidence that, because Walmart, Target and Best Buy have operated over 1,000 stores annually,[4] that somehow shows TreeFrog's LIFEJACKET branded products lined the shelves of those stores. [redacted] (See Exhibit 1 to Chad Decl.) Thus, the LIFEJACKET branded product was not a national brand, but a failed, niche product that no longer even appears on TreeFrog's website.

As the evidence shows that TreeFrog's LIFEJACKET branded product was and is a failure, TreeFrog then proceeds to claim that marketing and sales of its LIFEPROOF branded products somehow causes the LIFEJACKET mark to be known. However, the marks and products are not the same. The LIFEPROOF branded products have been, until 2017, limited to

[3] It should be noted that, while TreeFrog claims to be using the LIFEJACKET mark with "mobile devices", its Registration No. 4354783 is limited to use with "tablet computers". Yet, the specimen submitted with the June 18, 2018 a Section 8/15 Combined Declaration was for use with an Apple iPhone, which is not a tablet computer, and which calls into question the validity of that registration. (See Exhibit 15 to Remaklus Decl.)

[4] Sakar objects to the evidence submitted by TreeFrog regarding the number of stores operated by these companies (Exhibits 9-14 to the Chad Decl.) as being hearsay.

protective cases for mobile phones and tablet computers, and some peripheral products, such as screen protectors, lanyards, mounts, power packs, cables. (Exhibits 3-6 to Vater Decl.; Exhibit 12 to Remaklus Decl.). The LIFEPROOF products, [redacted], are being sold at retailers such as Target, Best Buy and Wal-Mart, through distributors and on the Lifeproof.com website. (See Exhibit 54 to Chad Decl. at response to Interrogatory No. 4.)

As TreeFrog has admitted, its customers are "members of the general public seeking protective accessories for electronic handheld devices" (*i.e.*, smartphones and tablet computers). (See 11 and 19 TTABVUE, TreeFrog Motion for Summary Judgment at p. 4.) While TreeFrog asserts that it has used the LIFEPROOF mark with speakers, it again fails to state that it was not until April of 2017 when TreeFrog chose to expand its use of the LIFEPROOF mark into those products, which are sold under the name AQUAPHONICS. (Exhibit 9 to Remaklus Decl. at 12:9-13:2; 35:16-18.)

TreeFrog prominently displays the LIFEPROOF mark on its retail displays. (Exhibit 13 to Remaklus Decl.) A representative example of such a display is set out to the right. Conspicuously absent from <u>any</u> retail display of TreeFrog is any reference to the LIFEJACKET product.



C. There Has Been No Actual Confusion

Sakar has been widely selling its LIFEJACKET branded products for over 4 ½ years. Despite the fact that its products and TreeFrog's products – mostly bearing the LIFEPROOF mark, but also LIFEJACKET in the past – have been sold concurrently for that entire time, there is no evidence that a single customer has ever been confused that Sakar's LIFEJACKET branded product is a product of TreeFrog or that its products have been authorized or approved by Sakar, or vice versa (Exhibit 2 to Remaklus Decl. at response to Interrogatory Nos. 11 and 12; Exhibit 1 to Remaklus Decl. at 17:16-18:4; Exhibit 9 to Remaklus Decl. at 38:8-20; Exhibit 54 to Chad Decl. at response to Interrogatory Nos. 9-11.)[5]

V. LEGAL STANDARD

"Whether there is likelihood of confusion between a registered mark and a mark for which an application has been filed presents an issue of law based on underlying facts, namely findings under the *DuPont* factors." *Jack Wolfskin Ausrustung Fur Draussen GmbH & Co. KGaA v. New Millennium Sports, S.L.U.*, 797 F.3d 1363, 1370, 116 USPQ2d 1129, 1134 (Fed. Cir. 2015). TreeFrog correctly set out the *DuPont* factors. In the present case, the evidence clearly shows either that (1) there is no likelihood of confusion as shown by the lack of any actual confusion, (2) TreeFrog's marks, and particularly the LIFEJACKET mark, are not strong, and (3) Sakar's goods are not related to those of TreeFrog sold under the LIFEJACKET and

[5] TreeFrog contends that it found one instance of confusion. As addressed below, that incident does not show confusion, but rather, nothing more than one mistyped review.

LIFEPROOF marks, particularly at the time Sakar began using the LIFEJACKET mark. All of which require the conclusion that there is no likelihood of confusion.

VI. PRIORITY

Sakar does not dispute that, with respect to protective cases for cell phones, smart phones and tablet computers, TreeFrog has priority with respect to its LIFEJACKET and LIFEPROOF marks. However, to the extent that TreeFrog seeks to argue that any rights it may have in those marks extends to any products other than those items, or that such other items (and particularly speaker-related products) would have been considered related at the time that Sakar began using the LIFEJACKET mark, TreeFrog has wholly-failed to present sufficient evidence on that issue. That is, it presents no evidence that, at the time that Sakar selected and adopted the LIFEJACKET mark in March of 2013 and began selling products under the mark in April of 2014 (See Exhibit 3 to Remaklus Decl. at response to Interrogatory No. 14; Exhibit 4 to Remaklus Decl.) it had any such rights, or that such goods would have been considered related. Indeed, as set out in detail below, the fact that TreeFrog identifies later-filed third-party registrations that include cases for protecting speakers does not show that such products were in a natural zone of expansion or would be considered related at the relevant time. *See, e.g., The Los Angeles Bonaventure Co. v. Bonaventure Assoc.,* 4 USPQ2d 1882, 1885 (TTAB 1987); *Technology Advancement Group, Inc. v. Tag Online, Inc.*, 2005 TTAB LEXIS 290, *24-25 (TTAB July 5, 2005) (non-precedential).

VII. ARGUMENT

In its motion, TreeFrog correctly points out that, while all of the factors in *ln re E.I. duPont de Nemours & Co.,* 476 F.2d 1357 (CCPA 1973), are to be considered, only the relevant factors need be considered. In this case, the relevant factors are:

(1) the similarity or dissimilarity of the marks in their entireties as to appearance, sound, connotation and commercial impression;
(2) the similarity or dissimilarity and nature of the goods or services as described in an application or registration or in connection with which a prior mark is in use;
(3) the similarity or dissimilarity of established, likely-to-continue trade channels;
(4) the conditions under which and buyers to whom sales are made, i.e., "impulse" vs. careful, sophisticated purchasing;
(5) the fame of the prior mark (sales, advertising, length of use);
(7) the nature and extent of any actual confusion;
(8) the length of time during and conditions under which there has been concurrent use without evidence of actual confusion;
(9) the variety of goods on which a mark is or is not used (house mark, "family" mark, product mark).

Moreover, while all factors can indeed be considered, factors 7 and 8 – the lack of any actual confusion – are dispositive in this case. And, even without consideration of the lack of any actual confusion (despite the clear opportunity for confusion to have occurred), the weight of the factors is against a finding of a likelihood of confusion.

A. The Lack of Any Actual Confusion Is Conclusive Evidence That There is No Likelihood of Confusion

As set above, there is no evidence of any actual confusion in this case. While, the ultimate test is whether there is a likelihood of confusion and not whether there is actual confusion, the absence of any actual confusion is meaningful where

> the record indicates appreciable and continuous use by applicant of its mark for a significant period of time in the same markets as those served by opposer under its marks. *Gillette Canada Inc. v. Ranir Corp*., 23 USPQ2d 1768, 1774 (TTAB 1992). In other words, for the absence of actual confusion to be probative, there must have been a reasonable opportunity for confusion to have occurred. *Barbara's Bakery Inc. v. Landesman*, 82 USPQ2d 1283, 1287 (TTAB 2007) (the probative value of the absence of actual confusion depends upon there being a

> significant opportunity for actual confusion to have occurred); *Red Carpet Corp. v. Johnstown American Enterprises Inc*., 7 USPQ2d 1404, 1406-1407 (TTAB 1988); *Central Soya Co., Inc. v. North American Plant Breeders*, 212 USPQ 37, 48 (TTAB 1981) ("the absence of actual confusion over a reasonable period of time might well suggest that the likelihood of confusion is only a remote possibility with little probability of occurring").

Citigroup Inc. v. Capital City Bank Group, Inc., 94 USPQ2d 1645, 1660 (TTAB 2010), *aff'd* 637 F.3d 1344, 98 USPQ2d 1253 (Fed. Cir. 2011). This is such a case.

[redacted]. (Exhibit 1 to Remaklus Decl. at 57:17-58:18; 68:12-69:20; Opposer's Supplemental Brief at p. 5.) Indeed, TreeFrog asserts that Sakar's LIFEJACKET branded products are sold "right next to Opposer's goods in Target, Walmart, and Best Buy". (See 29 and 32 TTABVUE, Opposer's Supplemental Brief at p. 7.)[6] Thus, there has been not only a reasonable and substantial opportunity for confusion to have occurred, but if there is any likelihood of confusion, such confusion would have had to have occurred.

Despite the fact that Sakar has now been selling its LIFEJACKET branded products for more than 4 ½ years (since early 2014), with over [redacted] LIFEJACKET branded products for sold for over [redacted], there have been ***no instances of actual confusion***. (Exhibit 1 to Remaklus Decl. at 17:16-18:4; 63:24-64:15; Exhibit 2 to Remaklus Decl. at response to Interrogatory Nos. 11 and 12; Exhibit 4 to Remaklus Decl.; Exhibit 5 to Remaklus Decl; Exhibit 9 to Remaklus Decl. at 38:8-20; Exhibit 54 to Chad Decl. at response to Interrogatory Nos. 9-11.) There is no evidence of any misdirected communications, no evidence of any consumer ever returning or complaining about a product to the wrong party, and no evidence of anyone

[6] Sakar disputes the assertion that the products are sold right next to each other, but does agree the products are sold in similar retail locations.

mistakenly purchasing the product of one party thinking it was that of the other party. The lack of any evidence of such confusion after more than 4 ½ years and [redacted] in sales by both parties is compelling evidence that no such confusion is likely. *See, e.g., Id.*; *INTS It Is Not The Same, GmbH v. Disidual Clothing, LLC*, 2017 TTAB LEXIS 388 (TTAB Sept. 28, 2017) (non-precedential) (finding no likelihood of confusion where the record showed the parties had sold their products in two distinct overlapping trading areas for six years with no actual confusion); *Pignons S. A. de Mecanique de Precision v. Polaroid Corp*., 657 F.2d 482, 490, 212 USPQ 246, 253 (1st Cir. 1981) ("[A]bsent evidence of actual confusion, when the marks have been in the same market, side by side, for a substantial period of time, there is a strong presumption that there is little likelihood of confusion. . . . Four years is a substantial amount of time), internal quotations and citations omitted); *Lever Bros. Co. v. American Bakeries Co.*, 693 F.2d 251, 258, 216 USPQ 177, 182 (2d Cir. 1982) (stating district court "found it significant that a history of combined sales of approximately sixty-three million food items during three years had not yielded even one documented instance of actual confusion. From this he inferred no likelihood of confusion. We agree."); *CareFirst of Md., Inc. v. First Care, P.C.*, 434 F.3d 263, 269, 77 USPQ2d 1577, 1581 (4th Cir. 2006) ("Although proof of actual confusion is not necessary to show a likelihood of confusion, the absence of any evidence of actual confusion over a substantial period of time - here, approximately nine years - creates a strong inference that there is no likelihood of confusion."); *Oreck Corp. v. U.S. Floor Sys.*, 803 F.2d 166, 173, 231 USPQ 634, 639 (5th Cir. 1986) ("In light of the concurrent use of the [challenged mark] and [plaintiff's] mark for seventeen months, [plaintiff's] inability to point to a single incident of actual confusion is highly significant.").

The reasons that there has been no actual confusion are clear. Although Sakar's LIFEJACKET mark and TreeFrog's LIFEJACKET mark are essentially the same, they are used for very different and unrelated products that are marketed to very different consumers. Sakar's application for the LIFEJACKET mark is for use with "Impact-resistant and moisture-resistant plastic cases for insulating audio speakers and headphones"; it is a removable case that goes around the speaker (though it is only sold with the speaker). (Exhibit 1 to Remaklus Decl. at 23:21-24:25.) By contrast, TreeFrog's registration for the LIFEJACKET mark is for use with "Waterproof protective case for tablet computers", and it is actually a protective case that goes over another protective case. (Exhibit 1 to Vater Decl.; Exhibit 9 to Remaklus Decl. at 13:18-14:20.) And, whereas Sakar's LIFEJACKET branded products are part of a line of products sold under the ALTEC LANSING brand and targeted to audiophiles knowledgeable of the ALTEC LANSING brand (Exhibit 1 to Remaklus Decl. at 37:11-38:17; Exhibit 7 to Remaklus Decl.; Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 5), TreeFrog's LIFEJACKET branded products are targeted to consumers seeking protective cases for mobile phones and tablet computers, and then only those who have already purchased a TreeFrog LIFEPROOF branded case as the LIFEJACKET branded product only fits over such a case. (Exhibit 9 to Remaklus Decl. at 13:18-14:20.) Moreover, TreeFrog's LIFEJACKET mark is decidedly weak because (1) it is at least suggestive (if not descriptive) of a case designed to make the product float and (2) [redacted]. (See Exhibit 1 to the Chad Decl.; Exhibits 10 and 11 to Remaklus Decl.)

With respect to the LIFEPROOF mark of TreeFrog, that mark and the LIFEJACKET mark are not substantially similar. Although both marks may begin with the term "Life", they are otherwise quite different in overall appearance, sound, meaning and commercial impression.

Sakar's LIFEJACKET mark is a play on its successful JACKET branded products and the well-known meaning of "LifeJacket" as the product was now waterproof and could be used in water. (Exhibit 1 to Remaklus Decl. at 17:16-18:9; 23:5-20; 35:5-20; Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 1.) TreeFrog's LIFEPROOF mark, by contrast, has been used primarily in connection with protective cases for cell phones and tablet computers (Exhibits 3-6 to Vater Decl.; Exhibit 12 to Remaklus Decl.), and the name calls to mind its claims that the products are waterproof, dirtproof, snowproof and dropproof, that is, proof against life. And, while TreeFrog may now be selling speakers under its LIFEPROOF branded line of products, those products were not introduced until April of 2017 (long after Sakar was using the LIFEJACKET mark) and bear the product name AQUAPHONICS (Exhibit 9 to Remaklus Decl. at 12:9-13:2; 35:16-18). In any event, as the LIFEPROOF and LIFEJACKET marks are not similar in overall appearance, meaning and commercial impression.

TreeFrog contends, however, that there has been one instance of confusion. It is wrong. The one instance they note is of a posting on the Best Buy website in the review section for the Sakar LIFEJACKET 3 branded product. That posting states, in its entirety, the following:

> **great lifeproof Bluetooth speaker**
> February 19, 2017
>
> this is a great lifeproof speaker. easy to use. sound is good. not able to adjust sound levels but great for basic use.

(Exhibit 32 to Chad Decl.) That entry does not show actual confusion. First, it was posted as a review to the Sakar LIFEJACKET 3 product; the user clearly understood that otherwise he/she would not have posted there. Second, it could not have been an intended review of a TreeFrog LIFEPROOF branded speaker as TreeFrog did not begin selling any speaker products until April of 2017, two months after the review was posted. (See Exhibit 17 to Remaklus Decl.) Thus, this

does not show any confusion by the person posting, but instead only a mistyping by the poster of the review.

Moreover, TreeFrog ignores that this posted review is only one of 1,017 posted reviews for Sakar's LIFEJACKET 3 product on the Best Buy site at the time as shown by a portion of that webpage reproduced to the right. Moreover, this was not something that TreeFrog was aware of, but rather, something that its counsel found by scouring the Internet for references to "lifejacket" and "lifeproof". (Exhibit 9 to Remaklus Decl. at 36:10-37:16.) Indeed, this can be seen just above the posted review which shows it was located only by filtering the reviews for a reference to "lifeproof". (See Exhibit 17 to Remaklus Decl.) As a result, one of 1,017 postings had mistakenly used the term "lifeproof". As one court observed:



> [Plaintiff's] inability to bring forth more than this single, feeble and indirect example of possible consumer confusion strongly indicates that [defendant's] use of the [challenged] mark has not created a likelihood of confusion.

Pignons, 657 F.2d at 490-91, 212 USPQ at 253. Thus, far from showing confusion, this one posting confirms the fact that there is and has been no actual confusion.

Accordingly, the lack of any actual confusion despite 4 ½ years of overlapping sales of [redacted] of products by both parties is dispositive evidence that there is no likelihood of confusion.

B. The Other *DuPont* Factors Support A Finding of No Likelihood of Confusion

In TreeFrog's motion, while it plays lip service to the fact that it is asserting two very different marks – its registration for the LIFEJACKET mark and its registrations for the LIFEPROOF mark – it in fact conflates the two in an effort to hide the fact that the underlaying factors are very different for the two marks.

1. There is No likelihood of Confusion With TreeFrog's LIFEJACKET Mark

Sakar admits that its LIFEJACKET mark is essentially the same as TreeFrog's LIFEJACKET mark. However, it is well-settled that

> the identity of the marks alone is not sufficient to establish likelihood of confusion in the absence of probative evidence that the goods are related. If that were the case, then the Registrant would have rights in gross, and that is against the principles of trademark law.

In re Thor Tech, Inc., 113 USPQ2d 1546, 1547 (TTAB 2015). The goods in this case are not related.

As noted earlier, Sakar's application for the LIFEJACKET mark is for use with "Impact-resistant and moisture-resistant plastic cases for insulating audio speakers"; it is a removable case that goes around the speaker (though it is only sold with the speaker). (Exhibit 1 to Remaklus Decl. at 23:21-24:25.) The LIFEJACKET mark of TreeFrog, however, is for use with "Waterproof protective case for tablet computers", and it is actually a protective case that goes over another protective case, and specifically a LIFEPROOF branded case. (Exhibit 1 to Vater Decl.; Exhibit 9 to Remaklus Decl. at 13:18-14:20.) A product that targets consumers that are seeking a protective covering for a cell phone or tablet computer, is a very different product from one that is targeted to consumers that are seeking a speaker that includes a replaceable protective case.

While TreeFrog asserts that speakers, and more specifically protective cases sold as a part of a speaker, are a related product, it cannot seriously make that argument with respect to the product that it sold under the LIFEJACKET mark. That product was a case designed solely for use in placing over another existing LIFEPROOF branded case to make the product float, the LIFEJACKET name would certainly not be one that a consumer would expect to be used with a speaker. Moreover, Sakar's product is an "impact-resistant and moisture-resistant plastic case for insulating audio speakers" and not simply speakers. TreeFrog seeks to bridge that chasm by citing at page 19-20 of its Supplemental Brief to 13 registrations that it contends show protective cases for speakers and protective cases for mobile devices are related. However, Sakar selected and adopted the LIFEJACKET mark in March of 2013 and began selling products under the mark in April of 2014 (See Exhibit 3 to Remaklus Decl. at response to Interrogatory No. 14; Exhibit 4 to Remaklus Decl.) What TreeFrog ignores is that each of the 13 registrations that it cites were filed on or after December 7, 2015, and so long after Sakar began using the LIFEJACKET mark. (See Exhibit 46 to the Chad Decl.)[7] But, the determination on whether the goods are related must be made at the time that Sakar adopted and began using the LIFEJACKET mark in April 2014 and not today. As this Board concluded in a similar case:

> After thoroughly reviewing the extensive amount of evidence submitted, we find that petitioner has failed to demonstrate that, as of the dates that respondent began using its respective marks for its identified services, the relevant consuming public would have expected providers of computers and associated software, and computer repair and maintenance services, to also offer web hosting services. The fact that, some two to four years after respondent began rendering its services, petitioner actually did offer web hosting services, or that in 2000 (four to

[7] TreeFrog also includes printouts of instances where it asserts the same mark is used for cases for mobile devices and cases for speakers. (TreeFrog's Supplemental Brief at p. 22 and Exhibit 47 to Chad Decl.) However, nearly all of the cases related to speakers are simply cases to carry the speaker and not a case that can be used to protect the speaker while in use. And, again, these do not show that in 2014 it would have been expected for the same mark to be used for protective cases for mobile phones and protective cases for speakers.

> six years later) Dell, a manufacturer of hardware, was advertising webhosting services under a variant DELL name, is not sufficient to show that web hosting services were within the natural scope of expansion of petitioner's goods or services as of the time respondent began using its marks.

Technology Advancement Group, Inc. v. Tag Online, Inc., 2005 TTAB LEXIS 290, *24-25 (TTAB July 5, 2005) (non-precedential, emphasis added).

While TreeFrog also cites to third party registrations that include speakers and cases for mobile phones (see Opposer's Supplemental Brief at p. 21 and Exhibits 45 and 46 to the Chad Decl.) those are for speakers and not for protective cases for speakers and so are not relevant. Moreover, the "existence of [third-party] registrations is not evidence of what happens in the market place or that consumers are familiar with them." *AMF Inc. v. American Leisure Prods., Inc.*, 474 F.2d 1403, 1406, 177 USPQ 268, 269 (CCPA 1973).

TreeFrog argues that, because Sakar had filed earlier applications for the mark THE LIFE JACKET and JACKET H2O that included both protective cases for mobile phones and speakers, Sakar has admitted the goods are related. That is a specious argument as that would automatically result in goods being considered related if an applicant included both goods. Treefrog cites no law in support of that argument as there is none. Moreover, the fact that the earlier application for the mark THE LIFE JACKET was rejected over TreeFrog's LIFEJACKET mark in no way shows there is a likelihood of confusion. Quite the contrary. What it shows is that the Trademark Office correctly considered the two products to be unrelated. Otherwise, the Examiner that reviewed Sakar's present application and its App. No. 86905487 would not have allowed the present application and rejected the other. (See Exhibits 42 and 43 to the Chad Decl.)

The other arguments of TreeFrog that the goods are related also fail. Specifically:

- The goods in the present application are not "used together" with TreeFrog's goods. The fact that a mobile phone that may be in a protective case may be linked to a Bluetooth speaker in use does not mean a protective case on a speaker is being used with the protective case on the mobile phone, thus the goods are not complementary

- While the goods are sold in the same store, that cannot in and of itself render the goods related. A modern retailer like Walmart and Target sell virtually all products. Giving such evidence probative value would create a per se rule that all goods at such a retailer are related, which cannot be, and is not, the rule.

- TreeFrog claims the goods are "near each other", but even they were unable to present any evidence of proximity to their products, simply a photograph showing Sakar's LIFEJACKET products near third-party cases. More importantly, the only evidence TreeFrog submits relates to the LIFEPROOF branded products. TreeFrog presents no evidence that its LIFEJACKET branded products have ever been sold near or even in the same stores as Sakar's products.

The products of Sakar and TreeFrog sold under the LIFEJACKET marks are also targeted to different consumers. Whereas Sakar's LIFEJACKET branded products are part of a line of products sold under the ALTEC LANSING brand and targeted to audiophiles knowledgeable of the ALTEC LANSING brand (Exhibit 1 to Remaklus Decl. at 37:11-38:17; Exhibit 7 to Remaklus Decl.; Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 5), TreeFrog's LIFEJACKET branded products are targeted to consumers seeking protective cases for mobile phones and tablet computers, and then only those that have already purchased a TreeFrog LIFEPROOF branded case as the LIFEJACKET branded product only fits over such a case. (Exhibit 9 to Remaklus Decl. at 13:18-14:20.)

TreeFrog similarly relies on evidence for its LIFEPROOF mark to assert that its goods sold under the LIFEJACKET mark are at a similar price point as Sakar's products. Not so. While at one point TreeFrog's LIFEJACKET branded products may have sold for around $40, currently it sells (to the extent it is sold) at around $7.99. (Exhibit 15 to Remaklus Decl.) By contrast, the products of Sakar sold under the LIFEJACKET mark sell for around $69 and $299.

Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 4; Exhibit 15 to Chad Decl.) A consumer spending up to $300 for the purchase of a speaker product or protective case would certainly be expected to exercise a fair amount of care in the purchasing decision.

Contrary to TreeFrog's assertion, the LIFEJACKET mark of TreeFrog is decidedly weak. The product is a case (*i.e.*, a vest) that is designed to make the cell phone or tablet computer it surrounds float. (Exhibit 9 to Remaklus Decl. at 13:18-14:20.) That is the very definition of a "Lifejacket".

> **life jacket** *n.* A life preserver in the form of a vest.
>
> **life preserver** *n.* **1.** A buoyant device designed to keep a person afloat in the water.

(Exhibit 14, to Remaklus Decl.)[8] While TreeFrog's product is not for use by a person, it nevertheless performs the same function. Thus, as used with TreeFrog's LIFEJACKET product, the mark is clearly descriptive or at least highly suggestive and so weak.

TreeFrog also did not promote the LIFEJACKET branded products. Apart from a handful of articles that mention the product, TreeFrog has presented no evidence that the LIFEJACKET mark was ever included in any marketing materials, on any point of sale displays or otherwise. [redacted], and the product is not being currently sold on TreeFrog's website. (Exhibit 1 to the Chad Decl.; Exhibits 10 and 12 to the Remaklus Decl.) While TreeFrog contends that the LIFEJACKET branded products were promoted at the CES shows between 2012 and 2016 (see TreeFrog Supplemental Brief at p. 28), it has presented no

[8] It is well established that "[t]he Board may take judicial notice of dictionary evidence." *In re Nielsen Business Media, Inc.*, 93 USPQ2d 1545, 1547 n.3 (TTAB 2010), citing *University of Notre Dame du Lac v. J.C. Gourmet Food Imports Co.*, 213 USPQ 594, 596 (TTAB 1982), aff'd, 703 F.2d 1372, 217 USPQ 505 (Fed. Cir. 1983); *see also* TBMP § 528.05(a)(1).

documents of any kind that would show that the product was ever featured or even shown at a CES show. [redacted]. (See TreeFrog Supplemental Brief at p. 28.) But, again, it neither produced nor submits evidence of any advertisements that were ever run for that product.

Finally, as set out in detail in Section VII.A., above, there is no evidence of any actual confusion as a result of Sakar's use of the LIFEJACKET mark.

Accordingly, for all the foregoing reasons, there is no likelihood of confusion between Sakar's LIFEJACKET mark for use with the goods of the present application and TreeFrog's LIFEJACKET mark for use with protective cases for cell phones and tablet computers.

2. There is No likelihood of Confusion With TreeFrog's LIFEPROOF Mark

As an afterthought, TreeFrog includes a section asserting that Sakar's LIFEJACKET mark conflicts with its LIFEPROOF mark. However, the LIFEPROOF mark is substantially different from Sakar's LIFEJACKET mark. Both marks may begin with the term "Life", but they are otherwise different in overall appearance, sound, meaning and commercial impression. Sakar's LIFEJACKET mark is a play on its successful JACKET branded products and the well-known meaning of "LifeJacket", as noted above, as the product was now waterproof and could be used in water. (Exhibit 1 to Remaklus Decl. at 17:16-18:9; 23:5-20; 35:5-20; Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 1.) TreeFrog's LIFEPROOF mark, by contrast, has been used primarily in connection with protective cases for cell phones and tablet computers (Exhibits 3-6 to Vater Decl.; Exhibit 12 to Remaklus Decl.), and the name calls to mind its claims that the products are waterproof, dirtproof, snowproof and dropproof, that is, proof against life. This factor weighs strongly against a finding of any likelihood of confusion.

TreeFrog tries to argue that it has a family of "Life" bearing marks. However, with the exception of the LIFEJACKET mark, all of the marks of TreeFrog are for the LIFEPROOF mark. It does not have a wide number of "Life" bearing marks as was the case in the decisions that TreeFrog cites. See *Black & Decker Corp. v. Emerson Elec. Co.*, 84 USPQ2d 1482, 1491 (TTAB 2007) (opposer had registrations for 7 different "Hog" bearing marks); *Victoria Secret Stores Brand Mgmt., Inc. v. Sexy Hair Concepts, LLC*, 91 USPQ2d 1671, 1672 (SDNY 2009) (opposer had registrations for 7 different "Sexy" bearing marks). Thus, TreeFrog holds no family of "Life" bearing marks such that a consumer would expect any mark that includes "Life" to be related to it.[9]

In addition, while TreeFrog may now be selling speakers under its LIFEPROOF branded line of products, those products were not introduced until April of 2017, long after Sakar selected and adopted the LIFEJACKET mark in 2013 and began selling products under the mark in April of 2014. (Exhibit 3 to Remaklus Decl. at response to Interrogatory No. 14; Exhibit 4 to Remaklus Decl.)

TreeFrog also errs in its assertion as to the strength of the LIFEPROOF mark as it relies on the sales and marketing of the brand through the 2017. However, the strength of the mark must be assessed at the time that Sakar began using the mark in April of 2014. Other than a summary of sale and a clam of having spent certain dollars annually on marketing, TreeFrog presents virtually no admissible evidence on the sales or marketing of products under the LIFEPROOF mark prior to April of 2014.[10] Thus, this factor is neutral at best.

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[9] TreeFrog refers to the mark LIFEACTIV, but it holds no registration for that mark.

[10] TreeFrog cites to Exhibit 52 to the Chad Decl. to support a claim of widespread marketing (including claims of items being viewed more than 4 billion times). However, that exhibit is nothing more than a listing of online and print articles that in most cases do not even include in the listing a reference to a "LIFEPROOF" product and, in any event, without the

While Sakar agrees that the channels of trade are similar in that the products are sold through third party retailers, the products of both parties are often sold in dedicated displays. For Sakar, those displays prominently display the ALTEC LANSING mark and LIFEJACKET mark, whereas TreeFrog's displays are focused on the LIFEPROOF mark (see pages 5 and 10, supra).

The parties' products are also targeted to different consumers (particularly in 2014). Whereas Sakar's LIFEJACKET branded products are part of a line of products sold under the ALTEC LANSING brand and targeted to audiophiles knowledgeable of the ALTEC LANSING brand (Exhibit 1 to Remaklus Decl. at 37:11-38:17; Exhibit 7 to Remaklus Decl.; Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 5), TreeFrog's LIFEPROOF branded products are targeted to consumers seeking protective cases for mobile phones and tablet computers. (Exhibits 3-6 to Vater Decl.; Exhibit 12 to Remaklus Decl.)

In addition, Sakar's LIFEJACKET branded products and TreeFrog's LIFEPROOF branded products can be quite expensive, costing up to $299. (Exhibit 2 to Remaklus Decl. at response to Interrogatory No. 4; Exhibit 15 to Chad Decl.) A consumer spending up to $300 for the purchase of a speaker product or protective case would certainly be expected to exercise a fair amount of care in the purchasing decision.

Finally, as set out in detail in Section VII.A., above, there is no evidence of any actual confusion as a result of Sakar's use of the LIFEJACKET mark.

Accordingly, for all the foregoing reasons, there is clearly no likelihood of confusion between Sakar's LIFEJACKET mark for use with the goods of the present application and TreeFrog's LIFEPROOF mark for use with protective cases for cell phones and tablet computers.

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articles there is no way to evaluate the substance. Moreover, there is no basis provided for how the viewership was determined. Thus, that exhibit must be given no weight.

VIII. CONCLUSION

For all the foregoing reasons, and the reasons set out in Sakar's Opposition to Opposer's Motion for Summary Judgment (22 and 23 TTABVUE), the lack of any actual confusion, the differences in the goods, the differences between the LIFEJACKET and LIFEPROOF marks, and the weakness of TreeFrog's asserted marks compel the conclusion that there is no likelihood of confusion between Sakar's LIFEJACKET mark for use with the goods of the present application and the LIFEJACKET and LIFEPROOF marks of TreeFrog. Judgment must be entered dismissing the opposition.

Respectfully submitted,

SAKAR INTERNATIONAL, INC.

Date: November 14, 2018

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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **Applicant's Supplemental Brief, Declaration of Theodore R. Remaklus** and **Exhibits Thereto** were served upon the following counsel for Opposer by electronic mail this 14th day of November, 2018:

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